

SENATE BILL 2604

By Southerland

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 40 and Title 55, relative to driver education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-206(a), is amended by designating the existing language as subdivision (a)(1) and adding the following new subdivision (a)(2):

(2) Within six (6) months of the effective date of this act, the department of safety, in consultation with state and local law enforcement agencies, shall update the advisory guidelines developed pursuant to subdivision (a)(1) to ensure the following are included:

(A) Pull over safely to the right side of the road as soon as possible; provided, this guideline must be consistent with informational material produced by the department pursuant to § 55-8-211(4);

(B) Turn off the engine, roll down the window, and remain inside the vehicle unless instructed otherwise;

(C) Place both hands on the steering wheel where the officer can see them;

(D) At night, if the vehicle is equipped with interior lights, turn them on for visibility;

(E) Wait for the officer's instructions before reaching for documents;

(F) Provide driver license, registration, and proof of insurance, if requested;

(G) If lawfully carrying a firearm, inform the officer, if asked;

(H) Comply if ordered to exit the vehicle; and

(I) Remain calm and courteous throughout the encounter.

SECTION 2. Tennessee Code Annotated, Section 55-8-206(b), is amended by adding the following at the end of the subsection:

By July 1, 2027, the department of education shall require driver education programs offered pursuant to title 49, chapter 1, and the department of safety shall require driver education or improvement courses offered pursuant to § 55-10-301, to include instruction on the updated advisory guidelines developed pursuant to subdivision (a)(2) and on the applicable Tennessee laws pertaining to displaying a driver license, registration, proof of insurance, and handgun carry permit upon demand of a law enforcement officer. The instructions must also include mock scenarios demonstrating the application of the guidelines and laws.

SECTION 3. Tennessee Code Annotated, Section 55-50-322(a), is amended by adding the following new subdivision:

(4) By October 1, 2027, written examinations administered to applicants for a driver license or intermediate driver license must include questions concerning the applicable Tennessee laws pertaining to displaying a driver license, registration, proof of insurance, and handgun carry permit upon demand of a law enforcement officer. By July 1, 2027, the department shall ensure the driver manual used to prepare applicants for the license examination includes sufficient information concerning such laws to enable a reasonably diligent applicant to correctly answer the additional questions.

SECTION 4. Tennessee Code Annotated, Section 55-8-206, is amended by deleting subsection (c) and substituting instead:

(c) The department of safety shall promote these advisory guidelines to the public to increase awareness and public safety, including posting them on its website and social media and including them in driver license renewal mailings.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.